

DECISION

Protest

Request No.: 01

Heard Jointly With Number(s): 02

Event: Snipe World Championship 2026 Race Number: 1
Hearing Schedule: 2026-09-22 17:00

PARTIES AND WITNESSES

Request No.: 01: Snipe - ITA 32004 - 49 - GIOELE TOFFOLO

Snipe - JPN 31929 - 59 - YASUSHI KONDO

Request No.: 02: Snipe - ITA 32004 - 50 - GIOELE TOFFOLO

Snipe - JPN 31929 - 59 - YASUSHI KONDO

VALIDITY

Objection to Jury: No

Within Time Limit: Within Time Limit

Incident Identified: Yes

Proper Hail: Hail not required

Red Flag Displayed: Not required

Decision: Request Valid

PROCEDURAL MATTERS

1. ITA 32004 was represented by Gioele Toffolo (Helm)
2. JPN 31929 was represented by Keishi Suzuki (Crew)
3. Hearing No. 1 was heard together with hearing No. 2 in accordance with RRS 63.2(b) since both hearings arose from the same incident.
4. ITA 32004 did not hail protest at the time of the incident, but since there was serious damage and she informed JPN 31929 of her intention to protest once they were both ashore and before the protest time limit, the requirements of RRS 60.2(c) are met.
5. ITA 32004 presented Vakaros tracking evidence.

FACTS FOUND

1. The wind strength was between 20 and 25 knots, with 2 meter waves.
2. After the start of race 1, both ITA 32004 and JPN 31929 were identified as OCS by the RaceSense system.
3. JPN 31929 immediately bore away and once her boat was completely on the prestart side of the starting line, she recrossed the line, starting and sailing on starboard tack, with ESP 29545 to windward of her at 1.5 mt.
4. JPN 31929 luffed up to close hauled course, then she continued luffing 20 degrees higher remaining clear of the pin end of the line.
5. ESP 29545 luffed in response.
6. Both JPN 31929 and ESP 29545 remained 3 to 4 seconds head to wind.
7. JPN 31929 began moving astern.
8. ITA 32004 was sailing on starboard tack, more than ninety degrees from the true wind, towards the pin, on a convergent course to leeward of JPN 31929, and with no boat to leeward of her.
9. When ITA 32004 was crossing astern of JPN 31929, there was contact between the starboard bow quarter of ITA 32004 and the stern of JPN 31929.
10. ITA 32004's damage was a 10 by 5 cm hole through the hull, on her starboard bow quarter. JPN 31929 had no damage.
11. ITA 32004 cleared the line, started sailing upwind and retired when reaching mark 1 as she was taking in water.
12. JPN 31929 finished race 1.
13. ITA 32004 did not sail race 2.

CONCLUSIONS AND RULES THAT APPLY

Rules: RRS 14(a), 21.1, 44.1(b), 60.2(c), 60.5(c), 61.4(b).

1. While sailing towards the pre-start side of the starting line to start after the starting signal, ITA 32004 failed to keep clear of JPN 31929, and broke RRS 21.1.
2. ITA 32004 did not avoid contact with JPN 31929 even though it was reasonably possible, and broke RRS 14(a).
3. Since ITA 32004 caused serious damage by her breach, her penalty was to retire as required by RRS 44.1(b). Since ITA 32004 took an applicable penalty, she is not further penalized under RRS 60.5(c)(2).
4. It was not reasonably possible for JPN 31929 the right-of-way boat to avoid contact with ITA 32004 when it became clear that ITA 32004 was not keeping clear. JPN 31929 did not break RRS 14(a).
5. ITA 32004's score in races 1 and 2 was made significantly worse through her own fault. Therefore, the requirements for redress in RRS 61.4(b) are not met.

DECISION

Protest dismissed.
Redress not given

Date & Time: 2026-09-22 19:53 CEST

PROTEST COMMITTEE

Committee Type International Jury

Chaired By: Francisco Vidal (ESP)

Committee Members: César Sans (ESP), Cxema Pico (IRL), Elliot Levy (VEN), Marco Giampà (ITA)

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